

Shiv Narayan v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 6 April 2023 · WRIT - C No. 11303 of 2023 · **Disposed; theft recovery withdrawn; dues left undecided.**

HEADNOTE

A recovery citation for electricity dues alleged to arise from theft was withdrawn by the Electricity Department, which undertook to consider the petitioner's objections and pass a fresh order. The writ was disposed of on that statement, with liberty to the respondents to proceed strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005. The court did not decide the theft allegation or the dues.

FACTUAL SUMMARY

Shiv Narayan filed a writ before the Allahabad High Court against a recovery citation dated 16 January 2023 issued by respondent no. 4, seeking electricity dues said to arise from theft of electricity. Counsel for the respondent Electricity Department told the Division Bench that the citation had been withdrawn, that the petitioner had been given an opportunity to file objections, and that a fresh order would be passed after those objections were considered.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Theft-dues recovery withdrawn; fresh order under the Supply Code

HOLDING

The respondent Electricity Department having withdrawn the recovery citation dated 16.01.2023 and having granted the petitioner an opportunity to file objections, after which a fresh order would be passed, the petition is disposed of with liberty to the respondents to proceed strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

FLAG The order cites the U.P. Electricity Supply Code, 2005 and names no clause. Catalog hits UP-2005::6.4, 6.4(c) and 6.45 do not appear in the text and are not adopted.

PRINCIPLE TAGS

recovery-withdrawn-fresh-order-under-supply-code Where the licensee withdraws a theft-dues recovery citation and undertakes to pass a fresh order after considering objections, the writ is disposed of without a merits finding, leaving the respondents at liberty to proceed only under the procedure prescribed by the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT OF ELECTRICITY AND WHAT DUES, IF ANY, ARE RECOVERABLE

The impugned recovery citation was withdrawn. A fresh order is to follow consideration of objections. The court did not decide the theft allegation or the amount. ¶ 1